



File No.: EXP202402598

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on February 1, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On February 1, 2024, a complaint was received by this Agency filed by Ms. A.A.A. (hereinafter, the complainant) against VIDACAIXA, S.A.U., INSURANCE AND REINSURANCE (hereinafter, the respondent) for not having duly addressed the right of access to the personal data of her deceased mother.

The complainant states that, as the legitimate heir of her mother, she sent the respondent, on two occasions, a request for access to her mother's personal data, as well as the origin of that personal data, in what type of documentation and/or contracts of Vidacaixa the personal data of her mother appears and in what capacity. And in case that this data was not obtained from the complainant's deceased mother, she requested the available information regarding its origin.

The complainant also indicates that both writings were responded to by the respondent incompletely, omitting relevant information, "(...) this response intentionally omits the requested information, since in response to my express request 'in what capacity it appears in the type of contract and/or documentation', I understand that it involves indicating the type of policy and within this, in what type of documentation and in what capacity my mother appears or what relation she has to the policies in question.

On the other hand, the Data Protection Officer has also not responded to my other request regarding 'If the personal data of B.B.B. was not obtained directly from her, the available information about its origin', as he has directly not attended to this information request, avoiding any response. In this regard, it should be noted that my mother never directly contracted any product with VidaCaixa or Caixabank."

In the complaint submitted to this Agency, the complainant states: "(...) Finally, I ask you to assess whether it is appropriate or if it could be the subject of a new complaint in your case, that in the context of exercising a right of access, the Data Protection Officer takes the opportunity to send me a list of companies and entities to which my personal data could be transferred if I consent to its transfer, a transfer which I have not consented to (...)"

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She provides a copy of her second request dated October 30, 2023, and the response sent by the respondent, dated November 13, 2023, in which they inform her regarding the personal data of the deceased, the purposes of the processing, the categories of recipients of the data, data transfers outside the European Economic Area, the existence of automated decisions, the retention period of the data, and the exercise of rights and the right to lodge a complaint with the regulatory authority. Once the instruction of this file was initiated, the complainant submitted a new document to this Agency in which she provides a thread of emails, including a new request for access to her deceased mother's personal data dated February 12, 2024. She also attaches a copy of the response received from the respondent in which they inform her that due to the complexity of her case, they are obliged to extend the deadline to respond.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent has indicated that "(...), on May 15, 2023, a document was received at VidaCaixa (...)

in which the exercise of the right of access to the personal data of her mother, Ms. (...), was requested, in her capacity as legitimate heir.

On February 12, 2024, a new document was received at VidaCaixa from the Complainant requesting the same exercise of the right of access.

Regarding the first request, on May 18, 2023, VidaCaixa responded to the interested party requesting documentation to prove her legitimacy.

On October 30, 2023, (...) she sent this documentation to VidaCaixa and VidaCaixa responded on November 13, 2023, (...).

Regarding the second request, VidaCaixa responded on April 8, 2024, (...).

Notwithstanding the above, VidaCaixa has proceeded to analyze the communications sent to the interested party with the aim of identifying whether there has been any incident. It has been confirmed that there is no incident or error in the responses sent to the Complainant.

(...), we inform you, confidentially and for your exclusive knowledge, that it has been identified that the mother of the Complainant, Ms. (...), was designated as a beneficiary in the year (...) in life insurance policies No. (...) and (...) whose policyholder and insured was Ms. (...), whose death, on (...), has led to the processing of the appropriate benefits derived from the aforementioned policies.

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(...), although the mother of the Claimant, Ms. (...) was listed in the referred policy as the sole beneficiary of the death benefit, her death, which occurred in the year (...) (that is, prior to the death of the policyholder and insured Ms. (...)), means that the designation of beneficiary made is rendered ineffective. This is in accordance with Article 32 of the Civil Code, which establishes that death implies the extinction of civil personality. Consequently, upon the death of the insured on (...), which is when the designated beneficiary acquires the right to receive the death benefit provided for in the insurance contract, the aforementioned beneficiary (Ms. ..., mother of the Claimant) had predeceased and, therefore, had no civil capacity, and thus could not acquire or transmit the right to receive the insured capital to her heirs.

(...), Article 84 of the Insurance Contract Law applies, in fine, which, in relation to the beneficiary, establishes that the "rules for its determination" should be taken into account, if any, and in the negative case, the capital will form part of the estate of the policyholder. The application of the aforementioned provision to the present case implies that the beneficiaries of the death benefit are the heirs of Ms. (...).

THIRD: According to Articles 64.1 and 65.5 of the LOPDGDD, the decision on the admission or inadmission of the claim must be notified to the claiming party within three months. If this notification does not occur after this period, when the claim concerns the lack of attention to a request for the exercise of rights, the procedure will be considered initiated from the date on which three months have elapsed since the claim was received by the Agency.

As stated, and considering that the claim was submitted to this Agency on February 1, 2024, the procedure for addressing the request for the exercise of rights is considered initiated on May 1, 2024, and thus, as of this date, the aforementioned claim has been admitted for processing, with notification to both parties.

The claiming party has submitted a new document to this Agency dated May 23, 2024, in which it states that "Although the Delegate attaches – before the Agency for the first time in this claim – an incomplete photocopy of the life insurance policies subscribed by the policyholder as a way to prove who provided the personal data of my mother, it still does not document the concept in which my mother (...) appears in the referred policies, that is, it persists in its refusal to attach the designation of beneficiary in my mother's name (...). It also does not attach a copy of the policies signed by the policyholder herself, but rather an incomplete photocopy of the life insurance policies, a photocopy which was already provided to us by Caixabank in January 2023, but without providing the designation of beneficiary in favor of my mother (...), a designation which is an indisputable part of the life

insurance policies.”

The aforementioned agreement granted the responding party a hearing period, to present any allegations they deemed appropriate within ten working days.

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The responding party indicated, in summary, that it ratifies and reiterates the content of the request for information.

“VidaCaixa considers that the request for the exercise of the right of access was duly addressed by incorporating all the information as attached in the previous response to the information request.

VidaCaixa responded to the claimant's request for the right of access on two occasions; (i) on November 13, 2023, and on April 8, 2024. This documentation is again attached as Annex I and II to this document.”

“(…) A different issue is whether the claimant is not in agreement or disagrees with the content of the information provided.”

The responding party continues to indicate that the beneficiary is understood as the person designated, expressly by the policyholder, to be the one who receives, for example, the compensation from the insurance entity in the event of a claim. Thus, the policyholder is the one who provides the personal data of the beneficiary, either by identifying specific individuals (e.g., name and surname, identification number, among others), or by designating heirs or other categories (e.g., children, spouse, etc.). In this second scenario, the insurer would not have knowledge of the complete identification of the beneficiary designated by the policyholder until the moment of the insured's death. Article 84 of Law 50/1980, of October 8, on Insurance Contracts (hereinafter, “LCS”), establishes that “The policyholder may designate a beneficiary or modify the previously made designation, without the need for the insurer's consent. The designation of the beneficiary may be made in the policy, in a subsequent written declaration communicated to the insurer, or in a will. (…)”.

“(…) The issue related to the designation and legitimacy is also regulated in Article 99.1 of Law 20/2015, of July 14, on the regulation, supervision, and solvency of insurance and reinsurance entities (hereinafter “LOSSEAR”), where it is stated that:

“Insurance entities may process the data of policyholders, insured parties, beneficiaries, or third-party victims, as well as their rights holders, without the need for their consent solely for the purpose of ensuring the full performance of the insurance contract and compliance with the obligations established in this Law and its implementing provisions. The processing of the data of the aforementioned individuals for any purpose other than those specified in the previous paragraph must have the specific consent of the interested parties.”

Therefore, it must be concluded that the legitimacy to carry out the processing of the data of those beneficiaries included by the policyholder in the policy is based on the satisfaction of the benefits and coverages established in the conditions of the contracted insurance products, including in this contractual relationship with the policyholder, the modifications, updates, or removals of beneficiaries by the latter. Additionally, to comply with the obligations established in the LCS and LOSSEAR, the processing would find its

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legitimacy in one's own regulatory compliance, in accordance with the provisions of the GDPR.”

“(…) In the context of the right of access, a specific limitation is provided in

Article 15, paragraph 4, which establishes that the possible negative effects on the rights and freedoms of others must be taken into account. In accordance with this article, the

right of access shall not adversely affect the rights and freedoms of others. The explanations regarding this limitation are given in the fifth and sixth sentences of recital 63: "This right should not adversely affect the rights and freedoms of third parties, including trade secrets or intellectual property and, in particular, the intellectual property rights that protect software programs."

Furthermore, the European Data Protection Board (hereinafter, "EDPB") in Guidelines 01/2022 on the rights of data subjects – right of access, considers that "the right of access may be exercised exclusively with respect to personal data concerning the data subject who requests access or, where applicable, by an authorized person or an authorized representative. There are also situations where the data has no link to the person exercising the right of access, but rather to another person. However, the data subject only has the right to personal data concerning themselves, excluding data that exclusively concerns another person."

(...) this party wishes to emphasize that informing the beneficiary about their designation by the policyholder would necessarily involve disclosing information about the policyholder, which would impact their rights regarding data protection. Likewise, it must be taken into account that depending on the beneficiaries designated by the policyholder, the person exercising the right may not be identifiable (e.g., in cases where reference is made to a spouse, children, or legal heirs), aspects that will materialize at the moment they can access once the causative fact has been verified. Therefore, the identification referred to by this figure must be understood as a subsequent moment, prior to the communication of the death and once the legitimacy to obtain the benefit has been verified and accepted.

The responding party indicates that "The claimant in their letter dated May 17, 2024, addressed to the AEPD (page 85 of the file) alleges that VidaCaixa persists in its refusal to attach the designation of beneficiary in the name of her mother. On this point, without prejudice to what will be said later, it is important to highlight at this moment that the exercise of the right of access is not the means to obtain documentation of a product, much less of a product contracted by a third party, as is the case, where the claimant requests the documentation of the policy and the designation of beneficiaries made by Ms. C.C.C..

It should also be emphasized that the designation of beneficiary is not the same as the policy, no matter how much it relates to it. The designation of beneficiary may contain information about third parties, and even legal heirs do not have the right to access it unless their status coincides with that of the beneficiary, as they are independent figures, as provided by Article 84 of the LCS.

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VidaCaixa understands that there is no justification for providing a copy of the policy formalized by Ms. C.C.C. in response to a request for access by Ms. B.B.B. (represented by the claimant). The exercise of the right of access is for the Data Controller to inform about the data it holds regarding the person exercising the right, not to obtain documentation or information about a third party.

The claimant also alleges in her writing that VidaCaixa does not document in what capacity her mother appears in the policies, and as stated in the response to the information request, it has been identified that the claimant's mother (...) was designated as a beneficiary in the year (...) in life insurance policies no. (...) and (...), whose policyholder and insured was Ms. C.C.C. (...)

We find that, although the claimant's mother, Ms. (...) was listed in the referred policy as the sole beneficiary of the death benefit, her passing, which occurred in the year (...) (that is, prior to the death of the policyholder and insured Ms. C.C.C.), means that the designation of beneficiary becomes ineffective.

The responding party continues its arguments by analyzing the concept of beneficiary to conclude that "(...) For the purposes of data protection regulations, when the claimant exercises the right of access in the year 2023, Ms. B.B.B. does not have the status of beneficiary regarding the referred policy, and therefore such relationship could not have been included in the response.

In light of all of the above, if the claimant wishes to receive a copy of the policy or the designation of beneficiaries of Ms. C.C.C., she must make her request through the designated channels. Without prejudice to the fact that only the heirs of C.C.C. may access this information, and Ms. B.B.B. is not accredited as such. VidaCaixa, in response to the exercise of the right of access, must only provide the data that pertains to the requester, and this has been duly demonstrated as stated above. Finally, it should be noted that, as explained earlier, since Ms. B.B.B. does not have the status of beneficiary, such information cannot be included, without prejudice to VidaCaixa's obligation to retain the data for potential claims and in order to exercise its right of defense."

"(...) CONCLUSIONS

In light of the above allegations, this party wishes to conclude that the response provided to the claimant is in accordance with the law for the following reasons:

- VidaCaixa responded to the request for the right of access.
- All data and information established by Article 15 of the GDPR are included in the response to the right of access.
- The claimant's mother does not have the status of beneficiary at the time the right of access is exercised, and therefore such information could not be included in the response to the right of access.

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- The insurers have data provided by the policyholders that cannot be disclosed (to the designated beneficiaries) because it would necessarily involve revealing information about the policyholder, which would impact rights regarding data protection.
- In any case, the documentation of a policy cannot be shared with third parties who do not have standing (a beneficiary does not have standing).

FOURTH: After examining the document submitted by the responding party, it is transferred to the claiming party, so that, within a period of ten business days, they may formulate the allegations they deem appropriate, indicating, in summary, and as it pertains to the present procedure, that they have "(...) legitimacy to exercise the right as the heir of a deceased person according to art. 3.1 LOPDGDD." And that their request regarding the origin of the personal data, type of documentation and/or contracts of Vidacaixa in which that data appears, is protected by articles 15 g) and 14 f) of the GDPR.

The claimant states that "(...) while they hold the position of heir of B.B.B., they are also the heir of C.C.C. (policyholder or insured under the contract that designated B.B.B. as the sole beneficiary of the life insurance) since November 2022 for all legal purposes (...) documentation which is in the possession of Caixabank and VidaCaixa since January 2023 (...). While the claimant has exercised the right of access to the personal data of B.B.B. as an heir of this person, they are also entitled to access that data as an heir of C.C.C., since there is no other designated beneficiary than B.B.B.."

The claiming party indicates that the responding party "(...) shows a categorical and legally unjustified refusal to document the designation of beneficiary in favor of B.B.B. (...)"

The claiming party asserts that they are the legitimate heir of both the beneficiary and the policyholder, and that this circumstance is documented in the responding party, "(...) and therefore, they are fully aware that the claimant is entitled, as an heir in rights and obligations, to a complete duplicate of the policy, including the designation of beneficiary, a right recognized in art. 11 of the photocopy of the policy provided by Caixabank as Annex (Doc. 15), based on art. 76.2 of the Regulation on the Organization and Supervision of Private Insurance (Doc. 15)."

The claiming party "(...) understands that the right to a copy of the personal data referred to in art. 15.3 of the GDPR should be faithful to the literalness of the document in which the personal data of B.B.B.

is recorded – the designation of beneficiary – since this is the only document in which the personal data of B.B.B. appears, while also showing and proving the concept – beneficiary – in which B.B.B. is listed in the life insurance contract signed by C.C.C.”

FIFTH: After granting a hearing to the responding party, they, regarding the present procedure, indicate the ratification and reiteration of the content of the written allegations in response to the Admission to Processing of July 8, 2024.

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"On the other hand, in the last written submission, the Claimant informs that she is an heir of both: (i) B.B.B., her mother and the person on whose behalf she has been exercising the right of access, the alleged neglect of which has led to the present file (a matter she legitimized in her response received by this party on October 30, 2023). Ignacia was the initial beneficiary of the policies, who ceased to be so upon passing away before the policyholder.

(ii) As well as C.C.C., the policyholder and insured under the insurance contract that designated B.B.B. as the beneficiary. To this end, she attaches as document 13, the Notarial Act of declaration of heirs ab intestato regarding the deceased C.C.C.

This matter had never been communicated to VidaCaixa in any of the writings or responses in the present file, but is mentioned for the first time in her last submission. In any case, this information does not undermine what has already been answered by VidaCaixa regarding the right of access requested on behalf of B.B.B., as it has been addressed at all times.

Another matter is that, if she is also an heir of C.C.C., the Claimant should have initiated, in the same way she did for her mother, the right of access in her name. Thus, since C.C.C. was the policyholder and beneficiary of the policies, she could have been informed directly, not only about the policies but also regarding the designation of beneficiary that she made at the time.

In our opinion, the Claimant errs in her Third Allegation regarding the designation of beneficiary, by stating that:

"The existence of the beneficiary designation document in favor of B.B.B. allows the claimant to request, through the right of access, the provenance and origin of her mother's personal data from the Delegate, regardless of the fact that the beneficiary has passed away and the future processing of the corresponding benefit."

This information could not be provided by VidaCaixa when the Claimant was acting on behalf of B.B.B., as we pointed out in our writing of July 8, 2024, "since the policyholder has the authority to designate beneficiaries or modify previously made designations at any time. (...) This party wishes to highlight that informing the beneficiary about their designation by the policyholder would necessarily involve revealing information about the policyholder, a matter that would impact their rights regarding data protection."

However, this position maintained by VidaCaixa, to protect the rights of C.C.C. at all times, would have been different if the Claimant had exercised the right of access in the name of C.C.C., duly accredited by the Act she provides in her latest allegations.

This party does not understand how the Claimant has not provided this documentation nor informed of this fact so that the information and data, this time indeed belonging to C.C.C., could have been provided."

(...)

CONCLUSIONS

In light of the above allegations, this party wishes to conclude that the response provided to the claimant is in accordance with the law for the following reasons:

- While the Claimant has exercised the right of access on behalf of B.B.B., considering all that has been stated, VidaCaixa responded to the requests for the right of access contained in the File where all the data and information established in Article 15 of the GDPR were incorporated at that time, given

the position that B.B.B. maintained, since the mother of the claimant does not have the status of beneficiary at the time the right of access is exercised, therefore such information could not be included in the response to the right of access.

- Insurers have data provided by the policyholders that cannot be disclosed (to the designated beneficiaries) because it would necessarily involve revealing information about the policyholder, a matter that impacts rights regarding data protection.
- In any case, documentation of a policy cannot be shared with third parties who do not have legitimacy (a beneficiary does not have legitimacy). If the Claimant had acted on behalf of the policyholder, there would be information that could have been provided. Without this key information, VidaCaixa could not act.
- We understand that the Claimant lacks a claim, as she has confused the position from which to exercise the right of access, that is, if her intention was to access the data of the beneficiary of a policy and she had legitimacy to act both on behalf of the policyholder and the beneficiary, she should have acted on behalf of the policyholder, as it is the one who has the authority to access that information."

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the...

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According to the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and proof of having provided the due response to the complainant.

The result of this forwarding did not satisfy the claims of the complainant. Consequently, on May 1, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission to processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted.”

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Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of rectifying any infringement of the GDPR, including “ordering the data controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and to state their reasons if they do not intend to comply with such request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data.”

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the “data or processing activities to which the request refers.” The right shall be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

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The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. On the other hand, the request will be

considered excessive when the affected party chooses a means other than the one offered that entails a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others.

V

Conclusion

The rights procedure is initiated as a result of the lack of attention to any of the rights regulated in the data protection legislation. Therefore, in this case, only the facts related to the exercise of these rights will be analyzed and assessed, excluding the other issues raised by the parties. Furthermore, the instruction of this procedure occurs when, after a right has been validly exercised, it is not duly attended to within the legally established timeframe. Therefore, it cannot be accepted that new requests are included during this instruction without meeting the requirements for exercise and deadlines.

Before addressing the substance of the matter, it is necessary to consider the Guidelines 1/2022 of the European Data Protection Board (hereinafter, EDPB), adopted on March 28, 2023, which approves the Application Guide for Article 15 of the GDPR, regarding the Right of Access of the Data Subject, which indicates that

“80. Although the right of access is generally exercised by the data subjects concerning their own data, it is possible for a third party to submit a request on behalf of the data subject. This may apply, among other things, to acting through a representative or legal guardians on behalf of minors, as well as acting through other entities via online portals. In some circumstances, the identity of the person authorized to exercise the right of access, as well as the authorization to act on behalf of the data subject, may require verification, provided that it is appropriate and proportionate (see section 3.3). It should be noted that providing personal data to someone who does not have the right to access it may constitute a breach of personal data security.

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(...)

82. While the exercise of the right of access to personal data of deceased individuals constitutes another example of access by a third party other than the data subject, Recital 27 specifies that the GDPR does not apply to the personal data of deceased persons. Therefore, the matter is addressed in national law, and Member States may establish rules regarding the processing of personal data of deceased individuals. However, it must be noted that the data may also refer to living third parties, for example, in the context of a request for access to the correspondence of a deceased person. The confidentiality of this data must still be protected.

In this regard, it should be based on the provisions of Recital 27 of the GDPR, which states that "This Regulation does not apply to the protection of personal data of deceased persons. Member States are competent to establish rules regarding the processing of personal data of these individuals," with a similar provision in Article 2.2.b) of the LOPDGDD.

Article 3.1 of the LOPDGDD, Data of Deceased Persons, establishes that "1. Individuals related to the deceased by family or factual ties, as well as their heirs, may contact the data controller or processor to request access to the personal data of the deceased and, where appropriate, its rectification or

deletion.

As an exception, the individuals referred to in the previous paragraph may not access the data of the deceased, nor request its rectification or deletion, when the deceased person expressly prohibited it or when a law so establishes. Such prohibition shall not affect the right of the heirs to access the patrimonial data of the deceased."

The Supreme Court, in its ruling of 04/03/2024 (Rec. 7418/2022), interprets this regulation considering that "Article 2.2 LOPDGDD reiterates the rule contained in Recital 27, denying the application of the Law to the processing of data of deceased persons, 'without prejudice to what is established in Article 3.' For its part, Article 3.1 LOPDGDD empowers the heir to contact the data controller or processor and request 'access to the personal data of the deceased' and 'where appropriate, its rectification or deletion.' By virtue of this reference to the laws of the Member States, it is perfectly possible for the rules of the GDPR to apply to the processing of data of deceased persons, as Recital 27 does not prohibit it. In other words, under the provisions of Recital 27 of the GDPR, the rules of the Regulation apply to the protection of personal data of living persons, but a Member State of the EU may enact rules regarding the processing of data of deceased persons, and such processing may be subject to the same rules that apply to living persons, among which is the GDPR. Advancing along this line, we have seen that Article 2.2 LOPDGDD reiterates the rule contained in Recital 27, denying the application of the Law to the processing of data of deceased persons, 'without prejudice to what is established in Article 3.'

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Following this line of jurisprudence, it can be concluded that the regime applicable to the right of access mentioned in Article 3.1 of the LOPDGDD is the same as that generally contained for the personal data of individuals in the aforementioned law. Therefore, Article 3 of the LOPDGDD legitimizes individuals related to the deceased by family or de facto reasons and their heirs to request the data controller access to the personal data of the deceased, under the terms provided in Articles 13 of the LOPDGDD and 15 of the GDPR, and, consequently, with the scope and limits that may be opposed to the exercise of this right.

For this reason, the claiming party has the capacity to request access to the personal data of her deceased mother.

The aforementioned Guidelines 1/2022 indicate that

"3.3. Evaluation of proportionality regarding the authentication of the requesting person

70. As previously indicated, if the data controller has reasonable grounds to doubt the identity of the requesting person, they may request additional information to confirm the identity of the interested party. However, the data controller must ensure at the same time that they do not collect more personal data than necessary to allow the authentication of the requesting person. Therefore, the data controller will carry out a proportionality assessment, which must take into account the type of personal data being processed (for example, special categories of data or not), the nature of the request, the context in which the request is made, as well as any harm that may result from incorrect disclosure. When assessing proportionality, it should be remembered that excessive data collection should be avoided while ensuring an adequate level of security in processing."

In the present case, from the examination of the documentation provided by the parties, it is observed that the identity of the requester was duly accredited.

Regarding the personal data requested by the claiming party, the provisions of the aforementioned Guidelines 1/2022 apply, which indicate that

"d). Is the request included within the scope of Article 15?

50. It should be noted that the GDPR does not introduce any formal requirement for individuals requesting access to data. To make the access request, it is sufficient for the requesting individuals to specify that they wish to know what personal data concerning them is processed by the data controller. Therefore, the data controller cannot refuse to provide the data by referring to the lack of indication of

the legal basis for the request, especially the lack of a specific reference to the right of access or the GDPR.

For example, to make a request, it would be sufficient for the requesting person to indicate that:

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- wish to access the personal data concerning them;
- are exercising their right of access; or
- wish to know the information concerning them that is processed by the controller.

It should be noted that applicants may not be familiar with the complexities of the GDPR and that it is advisable to be lenient with individuals exercising their right of access, particularly when it is exercised by minors. As previously indicated, in case of doubt, it is recommended that the data controller ask the data subject to specify the purpose of the request.

e) Do the data subjects wish to access all or part of the information processed about them?

51.

Furthermore, the data controller must assess whether the requests made by the applicants refer to all or part of the information processed about them. Any limitation of the scope of a request to a specific provision of Article 15 of the GDPR, made by the data subjects, must be clear and unequivocal. For example, if the data subjects literally request "information about the data processed concerning them," the data controller must assume that the data subjects intend to fully exercise their right under Article 15, paragraphs 1 to 2, of the GDPR. Such a request should not be interpreted as meaning that the data subjects wish to receive only the categories of personal data being processed and waive their right to receive the information listed in Article 15, paragraph 1, letters a) to h). This would be different, for example, when the data subjects wish, with respect to the specified data, to access the source or origin of the personal data or the specified storage period. In such a case, the data controller may limit its response to the specific information requested.

On the other hand, regarding the right to obtain a copy, the Judgment of the Court of Justice of the European Union (First Chamber) of May 4, 2023, states:

"1) Article 15, paragraph 3, first sentence, of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), must be interpreted as meaning that the right to obtain from the data controller a copy of the personal data undergoing processing implies that an authentic and intelligible reproduction of all such data is provided to the data subject. This right includes the right to obtain copies of extracts from documents, or even entire documents, or extracts from databases, which contain, among others, such data, if the provision of such a copy is essential to enable the data subject to effectively exercise the rights."

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rights conferred by that Regulation. It should also be emphasized the need to take into account, in this regard, the rights and freedoms of third parties.

2) Article 15, paragraph 3, third sentence, of Regulation 2016/679 must be interpreted to mean that the concept of "information" it encompasses refers exclusively to the personal data for which the data controller must provide a copy in accordance with the first sentence of that paragraph." (The underlining is ours)

Therefore, according to the interpretation of the right of access made by the Court of Justice of the European Union, as well as what is established in the aforementioned Guidelines 1/2022, the claiming

party has exercised the right of access regarding the personal data of their deceased mother, and the responding party would have to provide the claiming party with their right of access under the terms provided in the GDPR.

Article 15 of the GDPR establishes that

“1. The data subject shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning them are being processed and, if so, the right of access to the personal data and to the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) when the personal data have not been obtained from the data subject, any available information as to their source;
- h) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.

2. When personal data are transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards pursuant to Article 46 relating to the transfer.

3. The data controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee based on the administrative costs for any further copies requested by the data subject. When the data subject makes the request by electronic means, and unless otherwise requested, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others.”

The Guidelines of the European Committee continue to indicate

“154. In this context, it is important to remember that there is a distinction between the right of access under Article 15 of the GDPR and the right to receive a copy of administrative documents regulated by national law, the latter being a right to receive a copy of the actual document. This does not mean that the right of access under Article 15 of the GDPR excludes the possibility of receiving a copy of the document/medium in which the personal data appear.”

Regarding the right of access to personal data through the modality of a copy, Guidelines 1/2022 establish that:

“150. In this context, it is important to remember that there is a distinction between the right to obtain access under Article 15 of the GDPR and the right to receive a copy of administrative documents regulated by national law, the latter being a right to always receive a copy of the actual document. This does not mean that the right of access provided for in Article 15 of the GDPR excludes the possibility of receiving a copy of the document or of the means in which the personal data appear.

151. In some cases, the personal data themselves establish the requirements in what format the personal data must be provided. When the personal data constitute, for example, handwritten information by the data subject, in some cases the data subject must receive a photocopy of that handwritten information, as the writing itself is personal data. This could be especially the case when the handwriting is something that matters for the processing, for example, handwriting analysis. The same generally applies to audio recordings, as the voice of the data subject is personal data. However, in some cases access may be granted by providing a transcript of the conversation, for example, if agreed between the data subject and the data controller.”

In relation to the above, it is necessary to bring to attention the Judgment of the Court of Justice of May 4, 2023, in case C-487/21, which determines that

“28 Therefore, from the literal analysis of Article 15, paragraph 3, first sentence, of the GDPR, it follows that this provision confers on the data subject the right to obtain an authentic reproduction of their personal data, understood in a broad sense, that are subject to operations that must be qualified as processing by the data controller.

(...)

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32 Therefore, Article 15 of the GDPR cannot be interpreted as enshrining, in its paragraph 3, first sentence, a right distinct from that provided for in its paragraph 1. Furthermore, as the European Commission has pointed out in its written observations, the term "copy" does not refer to a document as such, but to the personal data it contains, which must be complete. Therefore, the copy must contain all the personal data subject to processing.

(...)

44 Therefore, as the Advocate General emphasized in point 61 of his conclusions, in the event of a conflict between, on the one hand, the exercise of the right to full and complete access to personal data and, on the other, the rights or freedoms of others, a balancing of the rights and freedoms in question must be carried out. Whenever possible, modalities of communication of personal data that do not infringe upon the rights or freedoms of others should be chosen, taking into account that, as stated in recital 63 of the GDPR, such considerations must not "result in the refusal to provide all the information to the data subject."

45 In light of the above considerations, it is appropriate to respond to the first to third preliminary questions that Article 15, paragraph 3, first sentence, of the GDPR must be interpreted as meaning that the right to obtain from the data controller a copy of the personal data subject to processing implies that an authentic and intelligible reproduction of all such data is provided to the data subject. This right includes the right to obtain copies of extracts from documents, or even entire documents, or extracts from databases, that contain, among others, such data, if the provision of such a copy is essential to enable the data subject to effectively exercise the rights conferred upon them by that Regulation. It should also be emphasized the necessity of taking into account, in this regard, the rights and freedoms of third parties.

In the same vein, the Judgment of the Court of Justice of the European Union of June 22, 2023, in case C.579/2021, states that,

"64 In this regard, the Court of Justice has already stated that the concept of 'copy' as used here refers to the authentic reproduction or transcription of an original, so that a purely general description of the data subject to processing or a reference to categories of personal data would not correspond to this definition. Furthermore, from the wording of Article 15, paragraph 3, first sentence, of that Regulation, it follows that the obligation to communicate is linked to the personal data that are the subject of the processing in question (see, in this regard, the judgment of May 4, 2023, Österreichische Datenschutzbehörde and CRIF, C-487/21, EU:C:2023:369, paragraph 21).

65 The copy that the data controller must provide must contain all the personal data subject to processing, present all the

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characteristics that allow the interested party to effectively exercise their rights under said Regulation and, consequently, to reproduce those data in a complete and authentic manner (see, in this regard, the judgment of May 4, 2023, Österreichische Datenschutzbehörde and CRIF, C-487/21, EU:C:2023:369, paragraphs 32 and 39)."

The response of the respondent party that the requested information does not form part of the content

of the right of access established by Article 15 of the GDPR cannot be accepted.

The right of access in its form of a copy implies "...that an authentic and intelligible reproduction of all those data is provided to the interested party," and, likewise, "This right includes the right to obtain copies of extracts from documents, or even entire documents, or extracts from databases, which contain, among others, such data, if the provision of such a copy is essential to allow the interested party to effectively exercise the rights conferred on them by that Regulation. It should also be emphasized the necessity of taking into account, in this regard, the rights and freedoms of third parties," which entails that each specific case must be examined.

In the case at hand, although there was a response from the complainant regarding the request made by the respondent party, it cannot be understood as having been addressed, as it only indicated the personal data, as well as generic information regarding the processing, but in no case did it specify the data requested by the respondent party, such as its origin or the documents where they appeared, nor did it provide a reasoned denial of their request.

Dissatisfied with the response provided, the complainant reiterated that their request is for the documentation proving the beneficiary of the policy in which those personal data are recorded, and during the instruction of the present procedure, the respondent party provided an extract of the policy in which the personal data of the deceased mother are recorded, thus addressing the requested access.

As a consequence of the aforementioned, although initially the requested right of access was not addressed, during the instruction of the procedure it was indeed carried out, by virtue of which it is appropriate to uphold, for formal reasons, the complaint filed as the right was addressed after the legally established deadline for it had elapsed.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the complaint filed by Ms. A.A.A. against VIDACAIXA, S.A.U., INSURANCE AND REINSURANCE. However, the issuance of a new certification by the respondent party is not warranted, as the right was addressed late, without requiring additional actions by the responsible party.

SECOND: TO NOTIFY this resolution to Ms. A.A.A. and to VIDACAIXA, S.A.U., INSURANCE AND REINSURANCE.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

1381-090823

Mar España Martí

Director of the Spanish Agency for Data Protection

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